

1.

CASE #	CASE NAME	HEARING NAME
CVME2406420	KARAS VS DAY	DEMURRER ON 2 ND AMENDED COMPLAINT

Tentative Ruling: Sustain general and special demurrer with 20 days leave to amend as to 2nd, 3rd and 4th causes of action—final leave to amend. This demurrer mirrors, in essence, the prior demurrer to which Plaintiff has not cured defects.

2.

CASE #	CASE NAME	HEARING NAME
CVME2510954	RAJASEKHARAN VS HYUNDAI MOTOR AMERICA	MOTION FOR CCP SECTION 871.27(G)(2) PENALTIES AGAINST DEFENDANT

Tentative Ruling: Deny the motion. Plaintiff argues that the CCP § 998 offer constitutes a release. They cite to no authority to support this argument. Based on the language found in CCP § 871.25, this argument fails. The release must comply with the language found CCP § 871.25.

3.

CASE #	CASE NAME	HEARING NAME
CVME2513139	CARLSON VS DR HORTON LOS ANGELES HOLDING COMPANY INC	THREE MOTIONS TO STRIKE AND ONE DEMURRER

Tentative Ruling: Overrule Defendant AAA Paving’s demurrer. Grant the motions to strike with respect to punitive damages. Grant the motions to strike with respect to SAC paragraphs 16(a) through 16(d) and paragraph 17. 20 days to Answer.

Defendant AAA argues when a contractor’s work has been completed and accepted by the owner, the contractor is not liable to third persons for injury suffered by reason of a patent defect caused by the contractor’s work. (*Boswell v. Laird* (1857) 8 Cal. 469; *Sanchez v. Swinerton & Walberg Co.* (1996) 47 Cal.App.4th 1461.) The SAC alleges Defendant D.R. Horton Los Angeles Holding Company, Inc. “exercised ownership, control, and/or responsibility over the roadway and offsite infrastructure where the incident occurred.” (¶3.) The SAC alleges Defendant BRPLD LLC “was involved in contractual relationships with the other defendants for the subject property location.” (¶2.) The SAC alleges Defendant AAA Paving Co. performed paving and roadway construct work under contract or at the direction of the other defendants. (4.) The SAC further alleges BRPLD “held direct supervisory authority over the subject construction zone” and that Dave Bartlett executed a Notice of Completion for AAA Paving’s street improvements that were completed 44 days before the incident. (¶19.) The SAC does not include any allegations about whether the defect was patent or latent. Without pleading that there was a patent defect the SAC does not, on its face, plead that the completed and accepted doctrine applies. Furthermore, it is not entirely clear from the SAC which entity or entities Plaintiff alleges owned the premises. Paragraph 2 does not identify BRPLD as the owner of the premises, whereas paragraph 3 indicates Defendant D.R. Horton exercised ownership over the roadway where the incident occurred. Paragraph 19 does not explicitly indicate that BRPLD was the owner of the property but rather held a “direct supervisory authority over the subject construction zone.” It is not clear whether the SAC alleges BRPLD was the owner of the premises and thus was able to accept AAA’s work for purposes of applying the completed and accepted doctrine.